

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

C.R. No.1130/2019

Muhammad Bilal etc. Versus Mst. Bhiranwan Bibi

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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08.10.2019 Malik Muhammad Ibrahim, Advocate for the petitioners.

Through this Civil Revision the petitioners have called in question order dated 24.09.2019 passed by the learned Additional District Judge in appeal filed by them, whereby their application for seeking comparison of thumb impression of the respondent-Mst. Bhirawan Bibi available on the mutation No.191 dated 06.01.1998 has been declined. The claim of the petitioners was that comparison of such thumb impression on the said mutation was required to facilitate the Court to reach a just conclusion in the matter in dispute as there is no possibility of change of the said thumb impression. Consequently prays that by setting aside the impugned order application for verification of thumb impression be allowed.

- 2. Heard. Record perused.
- 3. In a suit for declaration filed by Mst. Bhirawan Bibi-respondent, mutation dated 06.01.1998 was assailed by her alleging therein that she has neither sold the suit land to the petitioners nor received any consideration in lieu thereof as

well and the aforesaid mutation was a result of fraud. In the said suit both the parties contested the suit and led their respective evidence which suit was decreed in favour of the respondent on 04.03.2019 by the learned Trial Court. During the proceedings of the said suit the present petitioners never raised the plea for verification of thumb impression of the respondent and for the first time raised such plea before the learned Appellate Court. The learned Appellate Court dismissed the said application by observing that the respondent is illiterate lady who has denied the transfer of her property to the petitioners. The Court did not deem appropriate to allow comparison of thumb impression of the respondent by observing that sufficient evidence is available on record to decide the matter on its own merits in accordance with law. Although the said findings have been challenged but it was in the discretion of the learned Appellate Court to allow or disallow such request raised by either of the parties, especially when no demand has been made by the petitioners to have thumb impression compared before the learned Trial Court during the time when evidence was led by the parties. Such order declining the petitioners' plea for comparison of the thumb impression is purely within discretion of the learned Appellate Court and exercise of jurisdiction by the said Court cannot be interfered by this Court in its revisional jurisdiction, especially when final order is yet to be passed by the learned Appellate Court in the main appeal pending

before it which is considered continuation of the said suit and the learned Appellate Court does not require the said evidence for its adjudication. Even otherwise, if at the stage of final decision the court requires such comparison, it retains the jurisdiction to pass such an order if deemed appropriate. Therefore, at this stage it would not be appropriate to interfere in a matter which has not been finally decided and Court is yet to exercise its jurisdiction to finally conclude the matter. In these circumstances, the petitioners have to wait for the final outcome of the matter before calling the said order into question. At this stage learned counsel for the petitioners has not been able to point out any jurisdictional defect in the impugned order, therefore, the instant Civil Revision being devoid of merits is **dismissed**.

(Muzamil Akhtar Shabir)
Judge

WaqaR